BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

I.A No. 434 of 2018 in
C.A(CAA)No.09/BB/2018
U/R 34 of the NCLT Rules,

In the matter of:

M/s. Embassy Property Developments Pvt. Ltd,
CIN: U85110KA1996PTC020897
Having its Registered office at
I Floor, Embassy point,
#150, Infantry Road,
Bangalore- 560 001

- Applicant Company/Transferee Company

Date of Order: 08th January, 2019

Coram: 1. Hon'ble Shri Rajeswara Rao Vittanala, Member (Judicial)
2. Hon'ble Dr. Ashok Kumar Mishra, Member (Technical)

Parties/Counsels Present:

For the Applicant Company/ Transferee Company : Ms. Raghi.K PCS

O R D E R

Per: Rajeswara Rao Vittanala, Member (J)

1. I.A No. 434 of 2018 in C.A(CAA) No. 09/BB/2018 is filed by **M/s. Embassy Property Developments Pvt. Ltd, (Applicant Company)** U/R 34 of the NCLT Rules, 2016, by inter alia seeking to permit them withdrawal of the application filed in the Hon'ble Tribunal (I.A No. 256/2018, I.A No. 237/2018 and I.A No. 238/2018 in CA(CAA) 09/BB/2018).

2. Brief facts of the case are as follows:
   a) The Tribunal had already disposed of CA(CAA) No. 09/BB/2018 by order dated 20th March, 2018, by inter alia directing to convene the meeting of Shareholders of the Applicant Company by appointing

Chairperson and also Scrutinizer for the meeting of the Shareholder etc.

b) Subsequently, I.A No. 256/2018, I.A No. 237/2018, and I.A No. 238/2018 was filed by Applicant Company, by inter alia seeking to condone the delay of 110 days and issue fresh directions for holding. Meetings as directed by the Tribunal, by an order dated 20th March, 2018. The Tribunal passed order dated 28.09.2018, by permitting the prayer of the applicant Company.

c) Subsequently, the Board of Directors vide its Resolution passed on 26.10.2018, decided to withdraw the application filed in the Tribunal with regard to the proposed merger of M/s. DSRK Holdings (Chennai) Private Limited with M/s. Embassy Property Developments Private Limited.

3. Heard Ms. Raghi K, learned PCS for Petitioner. We have carefully perused the records of the Tribunal.

4. The Tribunal has already disposed of the main CA(CAA) No. 09/BB/2018 by order dated 20th March, 2018 as stated supra and subsequent all IAs are also disposed of filed by the Applicant Company. Therefore, there cannot be any withdrawal of the application, which was already disposed of. If the direction of the Tribunal is not complied with, such directions would automatically become infructuous/lapse.

5. In the result I.A No. 434 of 2018 in C.A (CAA) No. 09/BB/2018 is dismissed as infructuous. No order as to costs.

(Dr. ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

(RAJESWARA RAO VITTANALA)
MEMBER, JUDICIAL

Raushan

NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 08.01.2019

PRESENT: 1. Hon'ble Member (J) **Shri Rajeswara Rao Vittanala**
2. Hon'ble Member (T) **Dr. Ashok Kumar Mishra**

CP/CA No.	Purpose	Sec	Name of Petitioner	Petitioner Advocate	Name of Respondent	Respondent Advocate
CA(CAA)No.09/ BB/2018	IA 434/18 for withdrawal	Sec 230-232	M/s Embassy Property Developments Pvt Ltd	P Sriram And Associate PCS		

SL. NO.	NAME (IN CAPITAL) & PHONE NUMBER	REPRESENTATION TO WHOM	SIGNATURE

ADVOCATE FOR PETITIONER/s :

Raghi. K
For P. Sriram & Associates

ADVOCATE FOR RESPONDENT/s :

ORDER

Heard Ms. Raghi K. PCS for Petitioner. I.A No. 434/2018 in C.A(CAA) No. 09/BB/2018 is dismissed vide separate order.

MEMBER(T) **MEMBER(J)**

Raushan